

Ejaj Ahmad v. State of U.P. & Ors.

High Court of Judicature at Allahabad · Division Bench · 21 May 2018 · Writ-C No. 17450 of 2018 · **Writ disposed of; petitioner relegated to CGRF under clause 7.10; coercive action stayed till Forum decision.**

HEADNOTE

A dispute that the licensee is charging urban electricity rates for premises said to lie in a rural area is a billing grievance for the Consumer Grievance Redressal Forum under clause 7.10 of the U.P. Electricity Supply Code, 2005. The High Court will not decide the urban/rural classification in writ. If a representation is filed within 15 days, the Forum shall decide it in accordance with law, and no coercive action may be taken meanwhile.

FACTUAL SUMMARY

Ejaj Ahmad challenged an order dated 4 January 2018 of respondent no. 2 charging him urban electricity rates. He contended that his business premises fell in a rural area and therefore rural rates applied. The writ was first listed on 16 May 2018 to enable amendment of the petition and was taken up on 21 May 2018. The High Court did not examine whether the premises were urban or rural and instead pointed the petitioner to the Consumer Grievance Redressal Forum.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

CGRF for urban-versus-rural tariff billing grievance

HOLDING

A grievance that the licensee is charging urban electricity rates for a business place claimed to be in a rural area is to be taken to the Consumer Grievance Redressal Forum under clause 7.10 of the U.P. Electricity Supply Code, 2005. If the consumer files an application or representation before the Forum within 15 days, it shall be decided in accordance with law, and no coercive action may be taken until that decision. ¶ 1

PRINCIPLE TAGS

clause-7.10-forum-ombudsman-route-for-billing-grievances A dispute that the licensee is charging urban electricity rates for premises said to lie in a rural area is a billing grievance for the Consumer Grievance Redressal Forum under clause 7.10 of the U.P. Electricity Supply Code, 2005. The High Court will not decide the urban/rural classification in writ.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER'S BUSINESS PREMISES LIE IN A RURAL AREA SO AS TO ATTRACT RURAL RATHER THAN URBAN ELECTRICITY RATES UNDER THE 4 JANUARY 2018 ORDER.

¶ 1